ASD CargoMate — Legal & Compliance Pages Requirements

1. TERMS & CONDITIONS

Page URL: /terms-and-conditions

1.1 Platform Purpose

ASD CargoMate is an AI-enabled EXIM, trade intelligence, logistics and compliance technology platform providing tools such as:

- AI CargoMate Assistant
- HS Code assistance
- Export incentive guidance
- Import duty estimation
- Freight estimation
- Trade intelligence
- Buyer/Supplier intelligence
- Shipment planning and tracking
- Documentation assistance
- Compliance information
- Vendor marketplace/RFQ services

1.2 User Registration

Users must:

- Provide correct and current information.
- Maintain confidentiality of login credentials.
- Not share accounts without authorization.
- Keep company and KYC information updated.

CargoMate may suspend accounts containing false, fraudulent or misleading information.

1.3 Platform Information

CargoMate provides technology-assisted information and decision-support tools.

Users must independently verify critical customs, regulatory, taxation, licensing, freight and legal decisions before filing or executing transactions.

1.4 HS Code Classification

HS Code suggestions generated by CargoMate are recommendations based on available product information and data sources.

Final classification remains subject to:

- Complete product specifications
- Applicable Customs Tariff
- DGFT/Customs regulations
- Decisions of competent authorities

1.5 Export Benefits

RoDTEP, Duty Drawback, RoSCTL, Advance Authorisation, EPCG, GST refund or other scheme information displayed by CargoMate is subject to current government rules, eligibility criteria, effective dates and notifications.

Estimated benefits are not guaranteed benefits.

1.6 Freight Rates

Every freight result should be identified as:

- **LIVE RATE**
- **CONTRACT RATE**
- **ESTIMATED RATE**

Final freight is subject to carrier/vendor confirmation, capacity, routing, surcharges, taxes and shipment conditions.

1.7 Vendor Marketplace

CargoMate may connect customers with freight forwarders, customs brokers, transporters, warehouses and other service providers.

Vendor responsibility includes:

- Correct quotation
- Valid licences
- Service delivery
- Regulatory compliance
- Documentation
- Taxes
- Insurance where applicable

The programmer should not represent CargoMate as the actual logistics service provider unless CargoMate/ASD Logistics is specifically contracting for that transaction.

1.8 Subscription

Terms must cover:

- Free and paid plans
- Monthly/annual billing

- GST/taxes
- Upgrade/downgrade
- Renewal
- Usage limits
- Failed payments
- Suspension
- Cancellation

1.9 Intellectual Property

CargoMate branding, software, UI, proprietary algorithms, databases and original content remain protected intellectual property.

1.10 Prohibited Use

Users must not use CargoMate for:

- Fraud
- Illegal trade
- False documentation
- Unauthorized access
- Data misuse
- System abuse
- Circumvention of trade controls
- Unauthorized scraping/resale of protected data

1.11 Account Suspension

CargoMate may suspend or terminate accounts for fraud, abuse, non-payment, illegal activity, false KYC or serious Terms violations.

1.12 Third-Party Services

CargoMate may use government data, APIs, payment gateways, carriers, vendors and other third-party services.

Availability and accuracy of third-party systems cannot always be controlled by CargoMate.

1.13 Liability

A lawyer should finalize limitation of liability, indemnification and damages provisions before production.

1.14 Governing Law

Final wording should specify applicable Indian law, jurisdiction and dispute-resolution mechanism after legal review.

---

2. PRIVACY POLICY

Page URL: /privacy-policy

2.1 Information Collected

CargoMate may collect:

- Name
- Email
- Mobile number
- Company name
- Business address
- GST details
- IEC details
- PAN/business verification information
- KYC documents
- Subscription/payment status
- Shipment information
- AI queries
- Uploaded documents
- Usage/activity information
- Technical/security logs

2.2 Uploaded Business Documents

Users may upload:

- Commercial Invoice
- Packing List
- Shipping Bill
- AWB/BL
- SDS
- Certificate of Origin
- Customs documents
- Other EXIM documents

The policy must explain how these files are processed, stored, secured and deleted.

2.3 Purpose of Processing

Data may be used for:

- Account operation
- AI services
- Shipment processing
- Document analysis
- KYC
- Customer support
- Subscription management
- Security/fraud prevention
- Analytics
- Service improvement
- Legal/regulatory requirements

2.4 Data Sharing

Explain sharing with relevant:

- Cloud/infrastructure providers
- Payment gateways
- Service vendors
- API/data providers
- Government/regulatory authorities where legally required

CargoMate should not state that it sells personal data unless that is actually part of the business model and legally addressed.

2.5 AI Processing

Clearly explain that information submitted to AI features may be processed by AI systems/service providers to generate requested results.

2.6 Data Security

Implement appropriate:

- Encryption
- Access control
- Authentication
- Logging
- Backup

- Security monitoring

2.7 Data Retention

Define retention periods/policies for:

- Accounts
- KYC
- Documents
- AI conversations
- Transactions
- Logs

2.8 User Rights

Provide mechanisms applicable under relevant law for requests concerning:

- Access
- Correction
- Updating
- Deletion/erasure where applicable
- Consent withdrawal where applicable
- Grievance handling

2.9 Contact / Grievance

Provide designated privacy/grievance contact details before launch.

---

3. REFUND & CANCELLATION POLICY

Page URL: /refund-cancellation

3.1 Subscription Cancellation

Users should be able to request/carry out cancellation according to the selected plan.

Clearly define whether access continues until the end of the paid billing period.

3.2 Refund Eligibility

Define situations where a refund may be considered, for example:

- Duplicate payment
- Incorrect technical charge
- Payment deducted but subscription not activated
- Other approved cases

3.3 Non-Refundable Items

Clearly define any non-refundable:

- Used subscription period
- Consumed AI/API credits
- Purchased lead credits
- Completed services
- Other usage-based charges

3.4 Vendor Transactions

If customer-to-vendor payments are introduced, maintain separate cancellation/refund rules for marketplace transactions.

3.5 Refund Processing

Display:

- How to request refund
- Required transaction details
- Review process
- Approved refund method
- Expected processing timeframe

Final timelines should match the actual payment gateway/business process.

---

4. VENDOR TERMS & CONDITIONS

Page URL: /vendor-terms

Applicable to:

- Freight Forwarders
- Customs Brokers
- Transporters
- Warehouses
- Packaging providers
- Other approved logistics/service vendors

4.1 Vendor Registration

Vendor must provide genuine:

- Company information

- PAN
- GST where applicable
- Registration documents
- Bank details where required
- Service-specific licences where applicable

4.2 Verification

Display vendor status:

Not Submitted → Submitted → Under Review → Verified → Rejected → Reverification Required

4.3 Vendor Responsibilities

Vendor is responsible for:

- Accurate rates
- Validity periods
- Available capacity where claimed
- Correct service information
- Valid licences
- Regulatory compliance
- Service quality
- Taxes
- Customer commitments

4.4 RFQ/Quotation

Quotation should contain:

- Origin
- Destination
- Mode
- Rate
- Currency
- Validity
- Transit time
- Included charges
- Excluded charges
- Terms/conditions

4.5 Vendor Ranking

Ranking may consider:

- Price
- Service quality
- Rating
- Response time
- Reliability
- Verification
- Successful transactions

Paid/sponsored visibility should be separately identified where used.

4.6 Reviews

CargoMate may permit verified customers to rate/review vendors subject to moderation rules.

4.7 Vendor Suspension

Vendor may be suspended for:

- Fraud
- Fake documentation
- Expired licences
- Misleading quotations
- Repeated service failures
- Abuse
- Serious customer complaints
- Legal/regulatory violations

4.8 Vendor Subscription

Support:

Free | Pro | Business | Enterprise

Pricing and feature limits should remain configurable from Admin.

---

5. KYC / VERIFICATION POLICY

Page URL: /kyc-policy

5.1 Exporter/Importer Verification

Collect as applicable:

- Company PAN
- GST certificate
- IEC
- Company registration proof
- Registered address
- Authorized-person information/authorization

5.2 Vendor Verification

Collect:

- Company PAN
- GST
- Company registration
- Registered address
- Authorized person
- Bank proof if payouts are enabled

5.3 Service-Specific Verification

Request only when applicable:

- Customs Broker Licence
- IATA accreditation
- MTO registration
- Warehouse licence/registration
- Other applicable licences

Do **not** require every licence from every vendor.

5.4 Document Status

Each document should support:

Pending | Under Review | Verified | Rejected | Expired

5.5 Admin Functions

Admin should be able to:

- View document
- Approve
- Reject
- Enter rejection reason

- Request resubmission
- Enter expiry date
- Trigger reverification

5.6 Expiry Alerts

Automatically notify vendor/user:

- Before expiry
- On expiry
- When reverification is required

5.7 Data Protection

KYC documents should have restricted access, appropriate encryption/security controls and audit logging.

Only collect information reasonably required for the verification purpose.

---

6. AI & DATA DISCLAIMER

Page URL: /ai-disclaimer

This is particularly important for CargoMate.

6.1 AI Results

CargoMate AI provides information and decision-support based on:

- User input
- CargoMate databases
- Government information
- Third-party data
- AI analysis

AI results may contain errors or require additional verification.

6.2 HS Code

HS Code results are recommendations and should display:

Suggested HS Code + Confidence + Source + Last Verified + Alternative Codes where relevant

6.3 Customs & Compliance

Customs regulations can change.

Important compliance results should show:

- Official source

- Notification/reference where available
- Effective date
- Last updated/verified date

6.4 Export Incentives

Incentive results are indicative until applicable eligibility, HS code, Shipping Bill declaration, scheme conditions and current notification are confirmed.

6.5 Freight

Rates must be marked:

LIVE / CONTRACT / ESTIMATED

CargoMate should never describe an AI estimate as a live carrier rate.

6.6 Trade Intelligence

Buyer, supplier, company, competitor and market intelligence depends on available data coverage and should not imply completeness where the source does not provide complete market coverage.

6.7 Risk Analysis

CargoMate should call the feature:

Trade & Compliance Risk Analysis

Risk scores are decision-support indicators, not predictions of Customs examination or government enforcement decisions.

6.8 Professional Verification

For high-risk results provide:

Consult Expert

Especially for:

- Restricted goods
- Prohibited goods
- SCOMET
- Dangerous Goods
- Customs disputes
- Complex classification
- High-value incentive claims

---

7. COOKIE POLICY

Page URL: /cookie-policy

Create this page if cookies or similar tracking technologies are used.

7.1 Cookie Categories

Support:

Necessary Cookies
Required for login, security and platform operation.

Preference Cookies
Remember user settings and preferences.

Analytics Cookies
Used to understand platform usage.

Marketing Cookies
Used only where marketing/advertising technologies are implemented.

7.2 Cookie Consent

If required by the applicable setup/law, provide:

Accept All | Reject Non-Essential | Manage Preferences

Necessary cookies can be treated separately where appropriate.

7.3 Cookie Settings

Provide:

Cookie Preferences

in the website footer/settings so users can modify applicable consent choices.

DEVELOPER IMPLEMENTATION REQUIREMENTS

Public Footer

Add:

Terms & Conditions | Privacy Policy | Refund & Cancellation | Vendor Terms | KYC Policy | AI & Data Disclaimer | Cookie Policy

Registration

Mandatory checkbox:

I agree to the Terms & Conditions and Privacy Policy.

Do not pre-tick the checkbox.

Vendor Registration

Add:

I agree to the Terms & Conditions, Vendor Terms, Privacy Policy and KYC/Verification Policy.

Subscription / Payment

Before payment provide links to:

Terms & Conditions | Refund & Cancellation Policy | Privacy Policy

AI Chatbot

Add an accessible:

AI & Data Disclaimer

Important AI results should display:

Source | Last Updated/Verified | Confidence | Disclaimer where required

Database

Create a legal_documents table containing:

- document_id
- document_type
- title
- version
- effective_date
- content
- status
- published_at

Create legal_acceptances containing:

- user_id
- document_id
- version
- accepted_at
- acceptance_context
- applicable audit metadata

Do not overwrite old legal versions.

Admin Panel

Admin should be able to:

- Create/update legal documents
- Publish new version
- Set effective date
- View previous versions

- View acceptance records
- Require re-acceptance after material changes

Important

This document provides the **product and development structure** for CargoMate. Before public production launch, the final legal wording—especially privacy, liability, indemnity, refunds, jurisdiction, marketplace responsibility, KYC processing and AI disclaimers—should be reviewed by a qualified Indian technology/privacy lawyer.